Western Digital.

INVENTION ASSIGNMENT AND CONFIDENTIALITY AGREEMENT

I, _____, an individual, currently residing at the address set forth on the signature line below, hereby make this Invention Assignment and Confidentiality Agreement (the "**Agreement**") in favor of WD Storage Technologies India Private Limited, its parent, affiliates, commonly-controlled entities, and subsidiaries (collectively, "**WD**"), with reference to the following facts:

A. I have been engaged to perform certain service or deliver certain deliverables contemplated under a separate agreement, such as a consulting or service agreement or statement of work for the benefit of WD("**WD Agreement**") ("**Work**"). I acknowledge that I have reviewed and understand the nature and scope of this Work.

B. I am making this Agreement in favor of WD, in consideration for the opportunity to perform the Work for WD pursuant to the WD Agreement, as well as for any compensation from my employer that I receive for performing the Work.

With reference to these facts, I,_____ , hereby agree as follows:

1. Assignments.

a. **Inventions.** I hereby assign to WD all right, title and interest in and to the Inventions that I have, may have, or may acquire. As used in this Agreement, "**Inventions**" shall mean, individually and collectively, any intellectual property right, including but not limited to, intellectual property rights in any and all discoveries, developments, designs, industrial design/property rights, inventions, know-how, inventive acts (including an act of conception or of reduction to practice), patents, patent applications, improvements, copyrights, moral rights, neighboring rights, sui generis rights, database rights, other rights associated with works of authorship, creations or performances, trade secrets, trademarks, and trade dress that are related to or useful in the present or future business of WD or result from use of property owned, leased, licensed or contracted for by WD and that (i) are first conceived, developed or reduced to tangible form or practice by me, or (ii) arise from Work performed incident to the WD Agreement. I agree to immediately notify WD of any such Inventions, and to deliver immediately to WD all related materials in my possession or custody or under my control. If notwithstanding the foregoing, I retain any right, title, or interest to any such Invention, I hereby grant, and agree to grant, to WD, without any limitations or any additional consideration, the worldwide, exclusive, perpetual, irrevocable, transferable, freely sublicenseable, right and license under all my right, title, and interest with respect to such Invention. I agree that all assignment under this Agreement shall be perpetual, worldwide and royalty free. I further agree that all assignment of copyrightable material under this Agreement shall not lapse and the rights therein shall not revert to me. Specifically, I agree that if WD does not exercise the rights to copyrightable material assigned under this Agreement within one (1) year from the date of assignment, such assignment shall not lapse and the rights under such assignment shall not revert to me. If, notwithstanding the foregoing, I retain any moral rights with respect to any such Invention, I hereby waive all such moral rights. If any moral rights are not waivable under applicable law, I hereby promise and covenant not to institute, support, maintain, or permit any action or proceeding on the basis of, or otherwise assert any moral rights with respect to any such Invention. If under mandatory and non-waivable applicable laws, I am entitled to receive any additional consideration or remuneration for any assignment, transfer, conveyance, or license or any right, title, or interest with respect to any such Invention, all such assignments, transfers, conveyances, and licenses hereunder shall be conditioned on WD's express written notice, after my disclosure to WD of such Invention, that it accepts such assignment, transfer, conveyance, or license.

b. **Works for Hire.** All copyrights in materials created or made in connection with my involvement in the Work or related to the activities or business of WD are, and shall individually and collectively be deemed and considered a "work or works made for hire" for the purposes of the United States Copyright Act (17 U.S.C., Section 101) and for all other purposes. If for any reason my contribution to the copyrightable work shall be found to be anything other than a work or works made for hire, I hereby assign to WD any right, title or interest that I may have in the copyright, including, without limitation, any right in any renewal term of the copyright, and any and all other intellectual property rights of ownership in the work.

2. **Exclusion for Certain Countries.** I acknowledge and understand that nothing in this Agreement shall be construed to assign any rights that I may be entitled to retain under local applicable laws.

3. **Further Assistance.** If WD requests, I shall execute any documents reasonably necessary for use in applying for, registering, obtaining, enforcing, and maintaining the rights of WD to the Inventions in accordance with this Agreement. This obligation shall survive the termination or expiration of this Agreement. If WD is unable, after reasonable effort, to secure my signature on any document or documents needed to apply for or enforce any of the right, title and interest in and to the Inventions, for any reason whatsoever, I hereby irrevocably designate and appoint WD and its duly authorized officers and Personnel as my agents and attorneys in fact to act for me and on my behalf in the execution and filing of any such document or documents, with the same legal force and effect as if such acts were performed by me. I shall give such further assistance, including information and testimony, pursuant to WD's request in connection with WD's defense, assertion, or protection of WD's rights in the Inventions. WD shall reimburse me for reasonable out-of-pocket expenses that I necessarily incur in connection with giving such further assistance.

4. **Disclosure of Prior Intellectual Property.** I hereby warrant and agree that I do not claim any right in any previously conceived intellectual property except as may be set forth on Appendix 1 of this Agreement ("**Pre-Existing Intellectual Property**").

5. **License.** If any Inventions are derivatives of, or cannot be reasonably made, used, sold, reproduced, distributed and otherwise exploited without using or violating rights that I have in the Pre-Existing Intellectual Property, or any other rights I may allege, then I hereby grant to WD and its Affiliates a fully-paid, perpetual, worldwide, irrevocable, royalty-free, non-exclusive, transferable, sublicensable right and license to such rights. This license includes rights to make, have made, use, sell, offer for sale, import, copy, reproduce, make derivative works of, perform, distribute, display, fully exploit and exercise all Inventions (including any modifications, improvements and derivatives thereof) and all of the rights of WD with respect to the Work.

6. **Confidentiality Obligations.**

(a) "**Confidential Information**" means any information or item that is accessible or made available to me, incident to the Work under the WD Agreement, in any format, whether or not marked as "confidential," which is not generally known to the public and either: (i) is related, applicable, or useful to the business of WD, including without limitation anticipated research and development; or (ii) results from the use of equipment, supplies, or facilities owned, leased, or contracted for in furtherance of this Agreement; or (iii) is related, applicable, or useful to the business of any competitors, service providers, suppliers, clients or customers of WD, including without limitation all Inventions.

(b) I acknowledge and agree that the Confidential Information is the exclusive property of WD. I agree that I shall not use, copy, disclose, or disseminate, in any way or form the Confidential Information, except (i) specifically in connection with performing the Work for WD, or (ii) as otherwise specifically authorized in writing by WD. **IN ADDITION, I ALSO AGREE THAT I SHALL NOT DISCLOSE OR DISSEMINATE, IN ANY WAY, ANY CONFIDENTIAL INFORMATION TO MY EMPLOYER (IF I AM A CONTRACTOR), OR TO ANY THIRD PARTY, UNLESS I AM SPECIFICALLY AUTHORIZED TO DO SO IN WRITING, IN ADVANCE, BY WD.** I understand that my obligations herein apply to all Confidential Information I receive, possess, or view incident to performance of the Work, including but not limited to any Confidential Information I may have received, possessed, or viewed before I signed this Agreement. I understand that Confidential Information is important

material and represents confidential trade secrets, proprietary information and confidential business information of WD and affects the successful conduct of the business and goodwill of WD. I understand that any breach of any term of this paragraph is a material breach of this Agreement.

(c) To the extent that I have any access to individually identifying information about WD employees, contractors, or third parties (collectively, "Personal Data") in connection with the Work, I will access such Personal Data only when I have a legitimate and necessary business reason to do so, and I will strictly maintain the confidentiality of any such Personal Data.

7. **Upholding Obligations to Third Parties Regarding Confidential and Proprietary Information.** I confirm that I understand that in connection with my Work for WD, WD wants me to, and I agree that I will, comply with every lawful obligation that I have previously incurred to keep in trust and preserve in confidence any confidential or proprietary information owned by any third party including but not limited to a previous employer, and I shall not directly or indirectly disclose to WD nor use for WD's benefit nor induce WD to use any such confidential or proprietary information in violation of any such previously incurred obligation. I understand that this expectation also extends to any future obligations I may incur while still performing Work for WD or in between assignments to WD. I further acknowledge and agree that I shall not disclose to WD nor use for WD's benefit any information whatsoever that I do not have the full right and authority to so disclose or use. I further agree that I will not bring onto WD's premises, computer networks, or electronic communications systems any confidential or proprietary information of any prior (or future/concurrent) employer or other third party to whom I owe a lawful contractual or legal obligation of confidentiality. I further agree that I will obtain guidance from my past or present employer's legal department or my own attorney if I am uncertain as to whether I have the right to use or disclose any particular information prior to using or disclosing such information to WD.

8. **Return of Property.** All equipment, notebooks, documents, memoranda, reports, files, samples, books, correspondence, lists, programs, documentation, and/or other related materials produced incident to the Work, copyrights and patents relating from any work done by me incident to performing the Work, other written or graphic records, and the like, affecting or relating to the business of WD, which I prepare, use, construct, observe, possess, or control, shall be and remain the sole property of WD. I agree to deliver promptly to WD, upon the request of WD, all of the foregoing which are then or have been in my possession or under my control.

9. **Trade Compliance.** I will not, at any time, whether during or subsequent to performing the Work, export or re-export, directly or indirectly, any of WD's technology, software, systems, or any direct product thereof to any country or foreign national without first obtaining proper United States government approval. I understand that if I have any question regarding any release, export or re-export that is or might be contrary to this certification, I should immediately contact WD's Trade Compliance Department before taking any such action.

10. **Non-Solicitation.** During my involvement in the Work and for a period of eighteen (18) months following the voluntary or involuntary termination of such involvement for any reason, I shall not (whether on my own or in active concert with anyone else) directly or indirectly solicit or attempt to solicit (1) any person from WD with whom I worked or about whom I learned confidential information in connection with the Work, whether such person is an employee, a consultant, or an independent contractor, to terminate their employment or engagement with WD or to become employed by me or any third party; or (2) any customer of WD in a manner involving the use of information which is not legally in the public domain and which is confidential to WD. I acknowledge and agree that the foregoing covenants are reasonable and necessary to protect WD's Confidential Information, trade secrets and stable workforce. The foregoing shall not prevent or restrict employment or engagement of any person as a result of an unsolicited response of such person to a generally circulated offer of an employment or engagement opportunity.

11. **Use of My Image.** I hereby grant WD permission to use any images taken of me by or on behalf of WD during my involvement in the Work, for commercial or non-commercial materials and collateral, including, but not limited to, WD's websites, documents filed with governmental entities, presentations, signage and advertisements. I understand that I will not receive any additional compensation for such use and hereby release Provider, WD, and anyone working on behalf of either in connection with the use of my image.

12. **Global Code of Conduct.** I hereby certify that I have reviewed and understand WD's Global Code of Conduct that is available on WD's public website. I also agree that within 7 days of starting to perform the Work, I will review all WD policies, procedures, and guidelines that are applicable to me and accessible to me on WD's intranet. I agree to comply with the standards of conduct, requirements, and other guidelines set forth in the Global Code of Conduct and all other applicable policies, procedures, and guidelines. I further agree to contact my WD supervisor if I have difficulty accessing the policies, procedures, and guidelines, or have questions about the content of those materials.

13. **Continuing Obligations.** My obligations under this Agreement continue in effect beyond the performance of Work, and are binding on my assigns, heirs, executors, administrators, and other legal representatives.

14. **No Waiver.** No waiver by WD shall be valid unless it is specifically set forth in a writing signed by WD.

15. **Severability.** If any provision of this Agreement is held to be invalid or unenforceable, then such provision shall, to the extent of such invalidity or unenforceability, be severed, but without affecting the remainder of such provision or any other provision contained in this Agreement, all of which shall continue in full force and effect.

16. **Choice of Law.** This Agreement shall be governed by and construed in accordance with the laws of India.

17. **Enforcement.** I agree that any breach by me of this Agreement cannot adequately be compensated by money damages in an action at law, and thus WD shall be entitled to immediate injunctive relief, before any appropriate court of law, to enforce the terms hereof. No remedy conferred by any of the specific provisions of this Agreement is intended to be exclusive of any other remedy at law, and the election of one or more remedies by WD will not constitute a waiver of its right to pursue other available remedies.

18. **Entire Agreement; Amendments.** This Agreement is the entire and final and complete agreement between me and WD with respect to this subject matter, and it supersedes any prior or contemporaneous agreements or understandings of any nature, written or oral. This Agreement may be amended only by a written document executed by both Parties.

IN WITNESS WHEREOF, I have executed this Agreement on the day and the year written below.

Dated: _____ Signed: _____

ID Number (if any): _____ Print Full Name: _____

Current Residence: _____

Western Digital.

Appendix 1
to
INVENTION ASSIGNMENT AND CONFIDENTIALITY AGREEMENT

Pre-Existing Intellectual Property

Per Section 4 above, the list below contains all previously conceived intellectual property in which I personally have had an ownership interest in before engaging in Work incident to the WD Agreement, including any pertinent documentation. The word NONE here confirms that I do not have any previously conceived intellectual property in which I personally have an ownership interest. [If you have previously conceived intellectual property in which you personally have an ownership interest, then please strike out "NONE" and list such intellectual property.]

NONE_____

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